

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPP048916: SALVADOR RIZO vs MIGUEL MAGDALENO INDIVIDUALLY
AND IN HIS CAPACITY AS TRUSTEE OF THE MAGDALENO LIVING TRUST**

09/11/2026 in Department 21

**Motion to Compel Plaintiff Salvador Rizo to Serve Further Responses to Request for
Production, Set One and Request for Monetary Sanctions**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant/Cross-Complainant Miguel Magdaleno’s Motion to Compel Plaintiff Salvador Rizo to serve Further Responses to Requests for Production of Documents, Set One, and Monetary Sanctions of \$3,150, or Alternatively \$2,310 Against Plaintiff and his Counsel of Record, Gregory J. Ramirez, Esq.

Tentative Ruling:

Defendant/Cross-Complainant’s motion to compel further responses is GRANTED. Plaintiff is to serve further, verified code compliant responses to Defendant/Cross-Complainant’s Demand for Production of Documents, Demand Nos. 1-11, by no later than 9/21/26. Plaintiff is further ordered to produce a privilege log for each document withheld on the basis of a claimed attorney-client and/or attorney work product privilege.

Defendant/Cross-Complainant’s request for sanctions is DENIED.

Counsel for Defendant/Cross-Complainant is to give notice within two (2) court days.

Discussion:

This case involves a dispute regarding a commercial (agricultural) lease. Plaintiff is an elderly man who operates a solo farming business by growing crops on leased property and selling the crops to members of the public. Between 2021 and 2025, Plaintiff leased crop land from defendant Miguel Magdaleno. In July of 2025, issues arose at the farmland which Plaintiff describes as a “federal raid” seizing marijuana crops. Soon thereafter, it is alleged that

**2025CUPP048916: SALVADOR RIZO vs MIGUEL MAGDALENO INDIVIDUALLY
AND IN HIS CAPACITY AS TRUSTEE OF THE MAGDALENO LIVING TRUST**

defendant shut off the water to Plaintiff's area and effectively ejected Plaintiff from approximately two acres of land he was actively renting. According to defendant, the water was shut off because Plaintiff has accrued sizable arrears in his rental obligation. Plaintiff claims to have lost \$180,000 in bona fide crop profits. This lawsuit ensued.

The basic purpose of all discovery is to take the "game" element out of case preparation by enabling parties to obtain the evidence necessary to evaluate and resolve their dispute beforehand. (*Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1107; *Reales Investment, LLC v. Johnson* (2020) 55 Cal.App.5th 463, 473-474.) Each party has a presumptive right to inquire about any matter which – based on reason, logic and common sense – might (1) be admissible, (2) lead to admissible evidence, or (3) reasonably assist that party in evaluating the case, preparing for trial and/or facilitating resolution. (See CCP §2017.010; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.)

The party serving requests for production of documents must have good cause for the documents sought, and must describe them with reasonable particularity. (CCP §§ 2031.030(c), 2031.310(b).) Thereafter, the recipient is obligated to provide one of three responses: (1) a statement of **compliance**, which includes the actual documents (organized and labeled or as they are kept in the usual course of business) or a clear indication as to when and how the documents will be provided; (2) a statement of **noncompliance** based on **inability**, confirming a "diligent search and reasonable inquiry" and the reason for the inability, to wit: the documents never existed, were lost/destroyed, or in the possession of someone inaccessible; or (3) A statement of **noncompliance** based on **objection**, which must describe responsive documents and set forth "clearly" the specific grounds for the objection. (CCP §§ 2031.210-2031.280.)

Here, on February 18, 2026, Defendant duly served Requests for Production, Set One on Plaintiff. The RPD sought copies of documents identified in responses to special contention interrogatories. Timely responses were not forthcoming. On March 31, 2026, Defendant's counsel emailed Plaintiff's counsel advising that the discovery was past due, and that plaintiff waived his right to assert objections waived. Defendant requested verified objection-free responses by first week of April. Plaintiff complied, but with responses that were deficient. For instance:

"Responding Party will produce all responsive, non-privileged document in his possession, custody, or control. Without limitation, Responding Party will produce [photographs]. Please see attached documents."

On May 4, 2026, defense counsel sent an email to plaintiff's counsel, advising that "you produced five photos (Bate Stamp #203-207). None of the photos produced appear to be responsive to this request." Counsel also noted that "you have not produced tax returns and documents" and that the invoices supplies were not tethered to any particular RPD. Pursuant to CCP §2031.280(a), "any documents produced in response to a demand for inspection shall be identified with the specific request number to which the documents respond."

In response to the demand for further responses, plaintiff's counsel affirmed under penalty of perjury as follows:

**2025CUPP048916: SALVADOR RIZO vs MIGUEL MAGDALENO INDIVIDUALLY
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“When I received the Request for Production of Documents, both my paralegals and I sat down with Mr. Rizo and went over them with him. In good-faith, he brought us everything that he had in his possession and custody, which we have turned over to the moving party and his counsel. Mr. Rizo only had five pictures of the parcel that he had been locked out of by Mr. Magdaleno, which we produced to the defendant and his counsel. There are no more pictures other than what we had produced. Mr. Rizo was honest in that he had no document evidencing the claim for punitive damages, other than the pictures that he turned over. All of the photos that were produced (five) are responsive to all of the Requests for Production that defense counsel sent. She asked for any and all documents supporting his claim, and he produced all the pictures he took of the parcel he had been locked out of. The fact that Defendant's attorney's opinion is that the photographs and documents don't relate to the issues raised is irrelevant. The fact of the matter is that Mr. Rizo produced everything he has.” (Ramirez Decl Para 3-6.)

Following the initial hearing, wherein the parties were directed to engage in further meet and confer, the parties filed a joint statement as follows:

“As a result of this more engaged meet and confer effort and conferences, Mr. Ramirez produced several tax returns from Mr. Rizo that Mr. Rizo contends support his claim for damages. In addition, Ramirez has agreed to provide Ms. Schoen with supplemental responses stating which documents he has produced are responsive to the requests and that all documents and information he has supporting his Complaint for damages have been produced.”

Following the next hearing, defense counsel filed a unilateral statement:

“At the hearing on August 24, 2026, this Court instructed Plaintiff’s counsel that he needed to supplement his discovery responses to comply with California Code of Civil Procedure Section 2031.280 and Plaintiff’s counsel acknowledged this at the hearing. As of the filing of this Declaration, Plaintiff has not provided the requested supplemental discovery responses that label or identify the documents responsive to each request in accordance with California Code of Civil Procedure Section 2031.280.”

In 2020, the Legislature amended §2031.280 and removed the requirement that documents “be produced as they are kept in the usual course of business, or be organized and labeled to correspond with the categories in the demand.” CCP §2031.280(a) now requires that documents or categories of documents produced in response to a demand “shall be identified with the specific request number to which the documents respond.” Here, Plaintiff counsel has failed to comply with this requirement.

A further response is required for the following reasons:

1. Offering to produce “responsive, non-privileged documents” is not Code-compliant. Plaintiff waived the right to assert objections (except for the attorney-client privilege and attorney work product objections), and the qualification of “responsive” suggests that

**2025CUPP048916: SALVADOR RIZO vs MIGUEL MAGDALENO INDIVIDUALLY
AND IN HIS CAPACITY AS TRUSTEE OF THE MAGDALENO LIVING TRUST**

plaintiff may be inserting some discretion as to what is and is not responsive. Plaintiff is further ordered to produce a privilege log for each document withheld on the basis of the privilege objections.

2. Stating “please see attached documents” is not Code-compliant. The documents must be identified with the specific request number to which the documents respond. A description would suffice, but some direction is required.

In terms of sanctions, this is a wash. Pursuant to CCP §2031.310(h), “the court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Since plaintiff’s counsel served a response that was not Code-compliant, there was no substantial justification for refusing to remedy that. However, “notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.” (CCP §2023.020.) Defense counsel did not make “a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve” the motion prior to filing. (CCP §2016.040.) She sent one email, followed by the filing of the motion. (See Schoen Decl Para 11-12.) Ms. Schoen’s failure to faithfully meet and confer first caused two unnecessary court hearings, and significant loss of time.